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## **The rifle and the title: paramilitary violence, land grab and land control in Colombia**

Jacobo Grajales

This study explores the links between land ownership contention, private violence and the state. Colombia presents a context where criminal actors participate in the regular functioning of public institutions. The study rejects normative conceptions about the link between criminal actors and the state. Crime and violence are not considered as extraneous factors, separated from the political game; they are analyzed as constitutive of logics of competition, accumulation and economic development, ultimately, elements in the process of state formation.

**Keywords:** land contention; land grabbing; armed militias; paramilitary groups; Colombia

### **Introduction**

One day they (the paramilitaries) came to my place; they said – either you sell us your farm, or we'll buy it from your widow. We took all our stuff and we left. They never paid for the land. They gave me some rubber checks... My brother went back to our lands a few months ago, he told me the whole county is now planted with oil palm, hundreds of hectares. It is enclosed with fences and there is a 'private property' notice.<sup>1</sup>

Violence is dramatically linked to land contention (Borras and Ross 2007). As argued by Lund and Peluso in the introduction of this volume, 'violence appears to be the conjoined twin of all sophisticated forms of land control'. This paper intends to deal with the role of criminal actors and their interaction with the state in a case of egregiously violent land contention. In Colombia, paramilitary groups are pivotal in the protection of their allies' property rights against landless peasants' demands and rebel movements threats. Moreover, they participate in processes of spoiling, using violence and corruption to accumulate rural land. Their role in securing some people's property rights and denying others is not merely extra-institutional. It is supported by large bureaucratic and political networks that allow the legalization of profits from violence. In other words, paramilitary groups are both the cause and the consequence of land contention. On the one hand, they were initially the result of the rural elites' reaction in defense of their privileges; on the other hand, they used violence to generate a large scale land grabbing process that merits the qualification of 'agrarian counter-reform'.

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I wish to thank the anonymous reviewers, as well as Nancy Peluso, Christian Lund and Jun Borras for their valuable and insightful comments.

<sup>1</sup>Author interview, Santa Marta, March 2009.

This contribution will be specially attentive to interactions between armed actors, agrarian structures and the market. It follows Cramer and Richards, who plea for a disaggregation of ‘those phenomena typically classified as civil wars’ or ‘intermediate armed conflicts’ (2011, 290):

For the evidence shows that much recent and ongoing violent conflict has roots in, and is shaped by, agrarian structures, relations and change. And processes of agrarian structural change are themselves inherently conflictual and frequently violent. (Cramer and Richards 2011, 278)

Paramilitary groups mobilize two kinds of capital or resources. Firstly, violent capital, i.e. the control of organized violence: homicides, threats, forced displacement or forced disappearance. Secondly, ‘social capital’ (Sciarrone 2000), constituted by a large support network, that includes elected officials (mayors, governors, MPs) and public servants. This allows paramilitaries to obtain access to public treasury and to influence administrative decisions, particularly in the enforcement of property rights. After the demobilization of some of these groups was negotiated by the Alvaro Uribe administration (2002–2010), a part of their political network fell under the jurisdiction of the criminal justice system. Eighteen MPs were convicted and over a hundred are currently under investigation. Mayors, governors and public servants were also convicted or face criminal charges. Yet, most of the imprisoned politicians have been replaced by relatives or friends that have inherited their local political power. Moreover, paramilitaries’ economic networks have been seldom affected by the justice system. Hundreds of thousands of hectares of land violently grabbed from peasants remain in the hands of paramilitary front men or associates. These spurious properties have been legalized and partly integrated into the global economy via agribusiness and the land market.<sup>2</sup>

Consequently, armed violence becomes institutional violence when public institutions of property rights enforcement recognize grabbed land. Public institutions then become a vector of social exclusion, consolidating new forms of authority intimately related to private violence and crime. This complex relation between property and public authority has been studied by Lund and Sikor (2009), who interpret it as a sort of ‘contract’, that ‘authorizes the authorizers’: ‘The process of recognition of claims as property simultaneously works to imbue the institution that provides such recognition with the recognition of its authority to do so’ (Lund and Sikor 2009, 1). When succeeding in this conversion of spurious land into legitimate property, those formal institution’s authority – that is their capacity to enforce their decisions – is paradoxically reinforced. This paradox is only apparent, as crime is intimately linked to legal procedures and legal certifications; profits from crime and violence need to be converted into legally recognized forms of capital, and public institutions are the only actors capable of this conversion. In these processes, the state intervenes as a ‘qualifier’:

... endowed with juridical capital to name, nominate and qualify degrees of citizenship; that is to validate, sanction and authorize... The character of the state is intimately connected to the capacity to make distinctions, and this may just be the essence of public authority. (Lund 2006b, 689)

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<sup>2</sup>The ‘Land Act’, approved by the Colombian Congress in June 2011 intends to revert this situation. Its results were not measurable by the moment this text had been written.

This paper seeks to explore the links between land ownership conflict, private violence and the state, in a context where criminal actors participate in the regular functioning of public institutions<sup>3</sup>. The arguments that will be developed reject normative conceptions about the links between criminal actors and the state that are commonly mobilized in academic studies about the Colombian conflict and particularly about paramilitary groups. While trying to characterize the complex relation between paramilitary groups and the state, this approach stresses the fact that these groups are not the mere creation of the military or the governing elites. Contrary to other regional cases of counter-insurgency subcontracting, Colombian paramilitary groups are the complex result of the confluence of a great variety of actors, such as landholders, drug smugglers and army officers.

One of the most recent studies about paramilitarism in Colombia (López 2010) considers that the Colombian state has been ‘captured’ by criminal actors in large portions of its territory. This capture is defined as a sort of large scale corruption, in which ‘private agents influence on the formulation of laws, decrees, regulations and public policies searching for their own selfish interests in detriment of the general welfare’ (Garay Salamanca 2008, 9).<sup>4</sup> According to this analysis, paramilitary groups have had the capacity to follow a strategy of ‘co-opted reconfiguration of the state’, understood as:

... the action of legal and illegal organizations who, using illegitimate practices, seek to systematically change the political regime from within it, and to influence the formation, amendment, interpretation and application of rules and public policies, in order to obtain sustainable profit and to ensure political and legal validation of their interests, as well as social legitimacy in the long term. (Garay Salamanca 2008, 96)

This normative conception of the relationship between criminal organizations and the state is adopted by many scholars working on the Colombian case. For instance, it leads some of them to consider that ‘the Colombian state’s weakness facilitates its capture by armed groups and corrupted politicians’ (García Villegas and Revelo Rebolledo 2010, 205). Paramilitary groups, and criminal actors in general, are seen by these scholars as extraneous actors, separated from the political game. They would hold a parasitic relationship with the state, and their reinforcement would automatically lead to the weakening of the state and the legal markets.

Nevertheless, these kinds of interpretations are based on normative definitions of the state and reproduce a variety of discourses diffused by its authorized spokespersons and by international organizations. They fail to analyze the participation of private violence in capital accumulation and state formation. However, phenomena like forced-displacement and land grabbing, analyzed in this paper, exemplify the fact that the state is the main arena of paramilitaries’ armed mobilization. Contrary to the guerrillas, who intended to replace the state, paramilitary groups deployed their violent capital and their social capital in a strategy to obtain influence over local institutions and eventually – mainly using the

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<sup>3</sup>This implies a large conception of the state, taking into account its institutional core, but also the participation of a myriad of ‘twilight institutions’ (Lund 2006a, 2006b) which, although they are not recognized as legitimate authorities, contribute to the exercise of ‘state capacities’ (Migdal 1988).

<sup>4</sup>Where sources are cited in French or Spanish, all translations are my own.

parliament – over central agencies. In consequence, they must be analyzed as constitutive of logics of competition, accumulation and economic development, ultimately, elements in the process of state formation (Bayart 2004, Briquet and Favarel-Garrigues 2010). Their objective is not to maneuver outside the state, as the qualification of ‘warlords’ used by several scholars (Duncan 2005) may suggest. On the contrary, they intend to participate in intra-state conflicts and to obtain material and political profits out of this participation. Moreover, as suggested by Teo Ballvé (2011), paramilitary violence is part-and-parcel of processes of production and reproduction of the territory.

Arguing that criminal violence may be constitutive of state formation implies following Berman and Lonsdale’s (1992, 5) classical categories, as they:

... introduce a key distinction between ‘state building’ as a conscious process at creating an apparatus of control, and ‘state formation’, as an historical process whose outcome is a largely unconscious and contradictory process of conflicts, negotiations, and compromises between diverse groups whose self-serving actions and trade-offs constitute the ‘vulgarisation’ of power.

Paramilitary groups participate in these processes in two intimately linked manners: they have a key influence on intra-state conflicts and they play an important counter-insurgent and repressive role, as agents of violent population and territorial control. Paramilitaries’ objective was not to rebel and overthrow the state; yet, theirs was not a mere reactionary mobilization that would be limited to the protection of the status quo. Similar to Ottoman bandits described by Karen Barkey, paramilitary militias used violence as ‘maneuvers for mobility within the system, not opposition to the system’ (Barkey 1994, 195). In these maneuvers, they could ally to multiple actors from within that system. Those alliances were mutually advantageous. They gave paramilitaries access to bureaucratic and political resources, allowing them to legalize part of their assets; the example of title deeds, developed in the following pages, illustrates this argument. Moreover, paramilitary groups provided politicians and public servants with private profits and institutional influence. Finally, they contributed to the positioning of the state as the main conflict arena, where material and symbolic resources are distributed and where certifications of legality and legitimacy are awarded.

The participation of criminal actors in these conflictive processes of state formation shall not lead us to dismiss such dichotomies as legal/illegal and public/private. Indeed, the boundaries between these categories are used as a resource and source of profit by actors who are able to act as brokers. As we will see in the particular case of title deeds, paramilitary groups benefit from these boundaries, as they have the possibility to transform spurious profits into legal ones. A comparable situation is observed in the use of private security companies as facade organizations of paramilitary groups; these companies’ existence did not lead to the loosening of the distinction between public and private violence. On the contrary, one of their key functions was to serve as brokers between paramilitaries and the military, allowing the latter to share information and resources with their shadowy allies without taking any legal risks.

Consequently, it would be contradictory to believe that the existence of private armed groups and their participation in violent repression and corruption networks blurs the limit between the public and private or the legal and illegal. As a great variety of actors, from state officials to violent entrepreneurs permanently mobilize

these categories, they participate in the consolidation of their limits. These brokerage operations do not threaten the existence of those distinctions, they profit from them.

### **Social contention and private violence**

As argued by Borras and Ross (2007, 1) ‘conflict and violence develop and erupt partly because dominant groups in society and the state usually have interests that are fundamentally opposed to the autonomy of the landless classes’. In Colombia, land contention has been a powerful vector for political violence (Bello 2004, Querubín and Ibañez 2004). This is not only true about the current cycle of violence – dated by Pécaut (2006) from the end of the 1970s – and is not limited to paramilitary groups. The civil war experienced by the country from the 1940s to the 1960s, and known as *La Violencia*, cannot be understood without reference to previous transformations in rural property and land conflict between different social groups – landholders and peasants – and inside the nascent group of rural entrepreneurs (Kay 2001, Meertens 2000, Oquist 1980, Roldan 2002). Likewise, land contention is one of the key factors in the guerrillas’ armed mobilization from the 1960s (Reyes 2009). Indeed, land reform has long been one of the central demands of rebel guerrillas, especially FARC (Revolutionary Armed Forces of Colombia). This group was initially formed by settlers that had left the central Andean region, fleeing from *La Violencia*, who colonized the Southern Amazonian region (Jaramillo *et al.* 1986). As guerrilla groups have become increasingly engaged in coca growing and cocaine smuggling, their relations to land control have changed, becoming strongly influenced by coca plantations and traffic routes (Pécaut 2008, Valencia 2008).

Inequality, a historically rooted characteristic in Colombian society, can be both a cause and a consequence of conflict over land control. As in all Latin American countries, this inequality in rural property is a legacy of the colonial era (Kay and Salazar 2001). Moreover, unlike other countries in the region, Colombia did not implement a true agrarian reform policy, and the attempts to drive it were frustrated by the reactions of rural elites and their political allies (Zamosc 1986). The most recent endeavor to implement agrarian reform was undertaken during the 1990s using the MLAR (market-led agrarian reform) model, and never fulfilled its official objectives, as only 10% of the planned one million hectares had been distributed by 2000 (Thomson 2011, 242). Beneficiaries were essentially ‘rich peasants’ or the ‘agrarian bourgeoisie’ (Borras 2003, 381). The concentration of land ownership has increased over the past twenty years (Reyes 2009, Machado and Meertens 2010). Armed conflict has caused the forced displacement of over four million people, which has constituted another opportunity for land grabbing. As a consequence of this history, Colombia is one of the most unequal countries in the world, with a Gini coefficient for land ownership of 0.86, only exceeded in Latin America by Paraguay.

Two brief case studies will explore the complex links between social contention and paramilitarism in a context of harsh inequality and violent reactionary mobilization.

### ***From land reform to violent reaction***

In Colombia, and particularly in the Caribbean plains, the creation of paramilitary groups can be traced back to the 1970s, when large landowners created private militias to defend their properties against landless peasants (Machado and Meertens 2010). This was a reaction against peasant mobilizations in favor of an agrarian



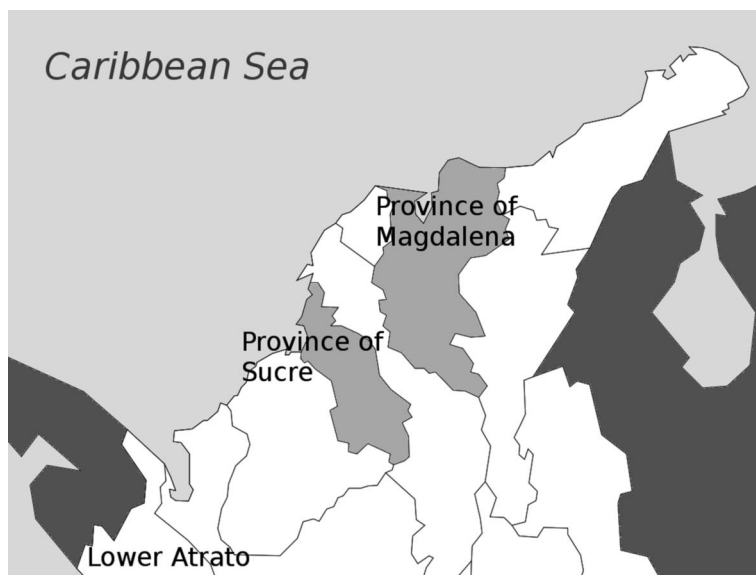


Figure 1. Colombia: Places mentioned in the text.

Source: The author. Based on a map produced by the Cartography Department (Atelier de Cartographie) of Sciences Po Paris.

reform. Initially, this cycle began under promising circumstances, with progressive measures decided by the Liberal president Carlos Lleras Restrepo. Lleras's administration created the ANUC (*Asociación Nacional de Usuarios Campesinos* – national association of users of state agricultural services) in 1967, which became the spearhead of peasants' struggles for their land. The ANUC was designed as an institution that involved mobilized groups in the implementation of their demands; moreover, it was a way to evade landowners' pressure on the government by the empowerment of the peasant movement (Zamosc 1986). However, the tides were turned with the election of the Conservative president, Misael Pastrana, who intended to defend landowners' interests. In the Chicoral Agreement, a pact between political leaders and large landowners and led by the president, himself, the decision was made to block the land reform, and to replace it with a settlement policy intended to colonize the unexploited Southern regions.

This cycle of civil mobilization interacted with the guerrillas' mobilization, which was fueled by the elimination of reform possibilities for land control. As argued by Frances Thomson (2011, 339), 'disillusionment with the failures of ANUC and the repressive and violent responses to pacific resistance contributed to the growth of armed struggle, which up to this point had mostly been indiscernible'. Indeed, the main demand made by FARC in the 1970s and 1980s was the implementation of a genuine agrarian reform policy. On this ideological platform, President Belisario Betancur had engaged in peace negotiations with the guerrillas. However, not long afterwards, supporters of the peace talks within the state were marginalized. The military expressed harsh opposition, considering these negotiations as the guerrillas' ploy to expand under the ceasefire protection. A sector of the elites, particularly landowners, felt their interests threatened by the possible adoption of some of the rebels' demands, particularly those affecting land distribution (Romero 2003).

In response to those threats, some local elites and military officers joined forces to create paramilitary groups (Medina Gallego 1990, Romero 2003). At that time, the law permitted the military to organize 'self-defense associations' to deal with 'subversive action led by extremist groups'.<sup>5</sup> These reactionary sectors concurred with the new drug lords, who were investing in massive quantities of land. Rural properties allowed them to launder drug traffic money and to integrate rural elites.

Sucre province (*departamento*) exemplifies this reactionary mobilization. Historically, the Caribbean region has been characterized by latifundia (large estates) property, mainly intended for cattle ranching and cotton farming. Sucre was one of the targets of the Lleras land reform in the 1960s. The Colombian Institute for Agrarian Reform (INCORA) was mandated to allocate parts of these large haciendas to the tenants and sharecroppers who had worked those lands for decades. Feeling threatened, many landowners evicted the families who lived on their properties (Machado and Meertens 2010).

With the arrival of the Conservative administration of Misael Pastrana (1970–1974), peasant leaders lost support in the highest echelons of the government. Loss of influence was followed by the movement's radicalization; some of its leaders appealed to peasants to 'carry out the agrarian reform by themselves' (Zamosc 1992, 29). This was a call to pursue a tactic of land invasions, which became a central strategy in the peasant movement's repertoire. They dramatically increased in the early 1970s. In the entire Caribbean region, eight land invasions were recorded in 1970. The next year there were 333 of these actions (Zamosc 1992, 30). This strategy was the principal means of influencing administrative decisions. Peasant movements invaded an hacienda and then asked INCORA to buy or expropriate the land and allocate it to landless families. In Sucre, they obtained control over nearly 120,000 hectares between the 1970s and the early 1980s (Ronderos 2010). Land invasions were often followed by harsh repression. Talking about one of these episodes, a witness remembered:

There were constant shootings, they (police) put us in jail and all that stuff... We were attacked with tear gas. There were more than a hundred families living in the occupied hacienda. That struggle was hard; they evicted us, put us in jail took away our land. At the end they bailed us out because there had been no direct negotiation with INCORA.<sup>6</sup>

During the second ANUC Congress, celebrated in 1972 in the Sucre capital of Sincelejo, most of the peasant leaders rejected the Chicoral Agreement. In response, the Minister of Agriculture accused the ANUC of adopting a 'communist' line. This radicalization was followed by the first assassinations committed by paramilitary groups in the region. Even the moderate factions of peasant organizations were stigmatized as guerrilla sympathizers by local authorities and rural elites. Yet rebel actions were still nascent at that time; in the first half of the 1970s, the revolutionary threat in Sucre was mostly conjecture. Still the specter of rebel action promulgated by the state was used to justify the repression. For instance, during the invasion of a hacienda, a harsh police response resulted in the killing of the peasant leader Anselmo Mendoza. The police's violent reaction was justified by the alleged presence of guerrillas (Machado and Meertens 2010, 228).

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<sup>5</sup>Decreto Ley 3398 de 1965.

<sup>6</sup>Cited by recent research of the Historical Memory mission, at the National Commission for Reparation and Reconciliation (Machado and Meertens 2010, 209).



Police repression was accompanied by private repression. In response to land invasions, some landholders set up vigilante groups to protect their properties. These first ‘violence professionals’ received military support from the army, as many officers saw them as useful counter-insurgency auxiliaries. Names like ‘The Black Hand’ or ‘Death to Kidnappers and Communists’ were known all over the Northern Sucre. These first groups were often members of local gangs. For instance, the police tolerated the activities of burglars, thieves, and highwaymen who collaborated with them in eliminating individuals suspected of ‘subversive’ activities. Some criminals were even released when they were thought to be potentially useful in helping the police and the military fight against ‘communists’ (Ronderos 2010).

The creation and development of those first groups were fueled by the arrival of drug traffickers in the 1980s. Drug lords had bought many rural properties along the Caribbean Coast and its hinterlands, usually cattle ranches (Reyes 1997). Armed groups protected drug smugglers from guerrillas, but also guarded the transport routes carrying cocaine to the **Gulf of Morrosquillo**, the loading harbor for shipping drugs to the US and Europe. Some drug traffickers created their own private militias, but others paid local groups, who were becoming prosperous ‘violence entrepreneurs’ by then (Volkov 2002).

FARC guerrillas arrived in the region by the mid-1980s. They were opposed to peasant movements, which they accused of being too moderate and close to the government. The rebels would even kill peasant leaders who opposed their armed authority. Similarly, they extorted money from landowners, kidnapped farmers, and burned the farms of those who refused to pay ‘revolutionary taxes’. This harassment fueled support of paramilitaries. As stated by one of these cattle ranchers:

You guys from Bogotá, you cannot understand how it is, to feel as if you were in a mousetrap; we could not leave the city for fear of being kidnapped by the guerrillas. Some colleagues could not manage their haciendas directly, and they sold them or entrusted them to managers.<sup>7</sup>

Paramilitary groups’ development was promoted by legislation favorable to armed security firms. In 1994, following the request of landholders’ lobbies, in particular the Federation of Cattle Ranchers (FEDEGAN), the government allowed the use of assault weapons by security firms operating in rural areas, and the training of their members by the military. This measure permitted paramilitary groups to become legally established firms, and thus enabled companies and individuals paying for their ‘security services’ to do so legally. ‘*Convivir*’ (‘Live together’) – as these rural security firms were called – were seen as a way to bring paramilitary groups under public regulation. As stated by the Private Security Supervisor, the high official in charge of the policy’s implementation,

They [the paramilitaries] said to the rich people of Bogota: ‘We are providing you security services . . . do you want security? You got it; give us the money and do not ask questions’. What can be the state’s response? There are two possibilities: one, to deny this situation and to say that it does not exist. Secondly, the state could accept the situation and try to incorporate these people into the state, alongside the police, the army, and the navy, under state regulation and within a legal framework. That is why the *Convivir* are important. (*Revista Cien Días* 1997)

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<sup>7</sup>Author interview, Santa Marta, March 2010.

In Sucre, large landholders and ranchers, who also comprise the local political elite, used the *Convivir* to legalize and expand their private militias. Alvaro Botero Maya, a rich rancher, registered a firm under the name of 'Future hope'. The politician Antonio Guerra de la Espriella, who is currently being investigated by the Supreme Court for his presumed links with paramilitary groups, created the 'Order and Development' *Convivir*. Guerra de la Espriella has been president of the association of oil palm producers (Fedepalma), vice-minister of Agriculture and senator. The head of 'Order and Development' was Salomón Feris Chadid, brother of José Luis Feris Chadid, a member of Parliament. Salomón, a former police lieutenant, has been indicted on charges of multiple homicides, having been accused of the assassination of a fourteen peasants in 1996, and four others in 1997.

By the mid-1990s, newly created local militias began to be integrated in a national confederation of paramilitary groups. In 1994, Carlos Castaño created the Peasant Self-Defense Forces of Córdoba and Uraba (ACCU), a paramilitary group initially active in the province of Córdoba, neighboring Sucre. In 1997, the ACCU became the United Self-Defense Forces of Colombia (AUC). Salvatore Mancuso, Castaño's associate, was in charge of the spread of the paramilitary federation in the Caribbean region. According to Mancuso, the unification of Sucre militias was decided in 1997, during a meeting held at Las Canarias Ranch, owned by Miguel Nule Amín, a local politician. The meeting was attended by then-senator Alvaro García Romero and by Javier Piedrahita and Joaquín García Rodríguez, both *Convivir* promoters. The attendees decided to entrust the group's command to Rodrigo Mercado Peluffo, alias Cadena, a Piedrahita employee, and Mancuso's old friend Diego Vecino<sup>8</sup>. A new meeting was held months later in Sincelejo, where the expansion of paramilitary groups to the South of the province was decided. According to a witness's statement, this operation would be financed by Senator Romero and by Salvador Arana,<sup>9</sup> who would become Sucre's governor in 2001. Both Romero and Arana were convicted for murder in 2009 and 2010.

A paramilitary chief's trajectory illustrates the interaction between social conflict, the state, and paramilitary groups. 'Cadena' was, in the 1980's, a member of a gang of thieves known as 'Rodríguez'. They collaborated with the military, killing peasant leaders and other individuals suspected of helping the guerrillas. In 1994, Cadena was hired by Javier Piedrahita, a wealthy rancher, as the head of his private militia, whose existence was legalized in 1996. However, in 1997 the Constitutional Court declared the unconstitutionality of the use of military weapons by civilians. Rural security firms became illegal, but they continued to grow in the form of paramilitary militias. They continued to be headed by the same men. In 1999, the prosecutor's office ordered the arrest of Cadena's former boss, who was accused of homicide and the establishment of illegal armed groups. By then, Cadena had become chief commander of the Mountains of Mary Heroes Front, a component of the United Self-Defense Forces of Colombia (AUC), the national federation of paramilitary groups.

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<sup>8</sup>Declaración de Salvatore Mancuso. Corte Suprema de Justicia, Rad. 32805.

<sup>9</sup>Declaración de Jairo Castillo Peralta Alias Pitirri. Corte Suprema de Justicia, Rad. 32805.

*The 'green gold'*

Paramilitary groups are key factors in understanding the diverse social conflicts in rural Colombia. The previous developments show the link between armed action and property rights contention. Yet, the issue of land control is also relevant for the understanding of labor rights when the development of an industrialized agriculture creates a favorable context for social mobilization.

The Magdalena province illustrates the interaction between paramilitary violence and social contention in relation to sudden agricultural development. The northern region of the province, located on the shores of the Caribbean Sea, used to produce the bulk of the country's banana exports in the 1930s. However, this sector suffered a severe depression during the 1960s, when the United Fruit Company left the area (*El Tiempo* 1991c). In the mid-1980s, the region produced an annual average of 60,000 tons of bananas. In 1990, this amount had been increased by four times that muchfourfold to reach more than 270,000 tons. In 1991, banana crops employed over 9,000 people (Bonet Morón 2000). The 'green gold' brought significant prosperity, but also inflamed social conflicts.

The recovery of banana production in the Magdalena was mainly due to the violence that affected Uraba, the leading banana production region at that time. Guerrilla racketeering and kidnapping led many investors to move their capital from Uraba to the Magdalena. Those newly arrived entrepreneurs had lived for many years in an environment where labor relations were marked by armed violence. The FARC and the ELN (National Liberation Army) controlled unions of farmhands, and employers frequently sent paramilitary groups to break strikes. Generally, those investors refused any relationship with the unions. Historian Carlos Miguel Ortiz (2007, 29) writes that there were owners 'who preferred to sell their plantations when it was no longer possible to obstruct the formation workers unions'.

However, the prosperity of the banana sector led unions to deploy a massive recruitment strategy. According to a union leader, 'We lacked a lot of basic stuff, people lived in very poor sanitary conditions and we worked without counting, there was no eight-hour day! Suddenly, it was a favorable environment for people to organize, to demand their rights'.<sup>10</sup> However, trade unions caused suspicion and rejection. As stated by another trade unionist, 'They [businessmen] believe that unionists are a weed that will spread through their business and lead it to bankruptcy. That's why when a worker joins a union he is fired from the plantation'.<sup>11</sup> This distrust is strongly linked to the armed conflict and to the ties – imagined or real – that unions may have with guerrilla groups. As said by a banana entrepreneur:

At that time, the situation was very serious. You imagine, you go along with the union, because of social dialogue and all that shit. Well, the next day you could have the guerrillas who came to tell you whom to hire, who told you to raise wages and asked you to pay a tax. Holy mother! That's why I never allowed unions at my place and I'm satisfied.<sup>12</sup>

<sup>10</sup> Author interview, Ciénaga, April 2009.

<sup>11</sup> Author interview, Ciénaga, April 2009.

<sup>12</sup> Author interview, Santa Marta, April 2009.

With the expansion of the banana business, the violence against unions grew. It not only targeted union leaders, it affected many workers who were close to the unions, which was likely a tactic to discourage membership. Newspapers from that time left this testimony: 'At [the town of] Ciénaga, in a single month, 2,000 people have subscribed to various unions, which has caused repression against union leaders. At Orihueca, when a mother learns her son has joined a union, she makes the sign of the cross and prays' (*El Tiempo* 1991b). Further, the coordinator of the Special Council for Reconciliation in the Magdalena stated:

The critical area is the banana zone, it has been impossible to sit at the negotiating table with banana entrepreneurs and workers, to find a solution to the conflict. . . . A social peace agreement must be attained, in order to calm down and neutralize belligerent spirits who believe that the solution of social problems can be found in guns, killings and silence (*El Tiempo* 1991a).

Therefore, the official authorities interpreted the violence as the result of the interaction between social tensions and armed actors. Stated more directly by the provincial head of the criminal police department 'entrepreneurs who arrive from [the province] of Antioquia want to impose the paramilitaries in order to neutralize unions' (*El Tiempo* 1991b). Similarly, an official report in 1991 stated that 'the new capitals . . . bring with them a pattern of labor relationships based on repression and the use of paramilitaries' (*El Tiempo* 1991b).

Concrete examples of this violence illustrate this point. On July 22, 1991, a group of paramilitaries murdered three workers at a banana plantation, two men and a woman. They had been spreading threats during previous months, including handing out leaflets accusing the unions of being 'guerrillas dressed in civilian clothes'. The enforcement of these threats caused the mobilization of the Sintrainagro union (National Agricultural Industry Union), which organized in November a 'National forum' to denounce the presence of paramilitaries in the banana zone. A week later, on November 28, the four members of the local union who had attended the forum were killed.<sup>13</sup>

The violence eventually encouraged the more moderate wing of the unions, which was seen as close to the owners and the political elites. During an interview, a unionist shows its relation to the employers as a survival strategy:

In the past, we believed in class struggle and all that stuff. Afterwards we began to have closer relations to the establishment. As I told you, we participated in several town governments [in Santa Marta and]. In fact, the idea of what the Left is changed. This story about two antagonistic classes, bourgeoisie and proletariat, we drop off all that. . . . This strategy to gain new spaces was a kind of shell. I think we approached politicians to protect ourselves from the paramilitary. . . . You know, politicians have always been allied with the paramilitaries, so they left us a little quieter.<sup>14</sup>

The banana region was the critical zone of the province, and one of the most violent regions in the country. Between 1989 and 1995, 74% of murders committed by paramilitaries in the Magdalena occurred in this area. The town of Ciénaga experienced a rapidly growing number of killings during the early years of the decade. According to the police, the murders rose from 14 in 1989 to 91 in 1991.

<sup>13</sup>CINEP, database Noche y Niebla.

<sup>14</sup>Author interview, Santa Marta, April 2009.

During those years mass murders occurred, a phenomenon commonly associated with the generation of a climate of fear among the population.

The polarization was fueled by the criminal activities of the guerrillas, who sought to capture profits from the rise of the banana industry. The FARC and ELN practiced extortion and kidnapping for ransom. They looted and burned the plantations of those who refused to pay the 'revolutionary tax'.

The newspapers of the time show the fear caused by the escalation of kidnappings among the wealthy elite: 'A banana businessman from the region, who asked not to be identified, said the authorities did not provide the necessary security and many of his colleagues had to stop visiting their properties by fear of being kidnapped or murdered' (*El Tiempo* 1993). An article from May 1992 lists the victims of kidnapping during the early months of that year. Most cases involved banana businessmen, cattle ranchers and politicians. The number of kidnappings increased from ten in 1988 to fifty in 1995 (*El Tiempo* 1992).

These examples of land property contention in Sucre's haciendas and labor rights contention in Magdalena's modern plantations show the extent of private repression in those rural societies. Private violence protected elite's privileges that were bound up with land control and threatened by social mobilization of two kinds: landless peasants vindications on one hand and farmhands collective movement on the other. In spite of significant evidence about this 'parainstitutional' violence in diverse Latin American countries (Jones 2004, Kruijt and Koonings 2004) we know little about the participation of private armed actors in the 'solving' of social contention and the securing of acquired power positions (Combes 2006). Indeed, studies about repression are generally centered on state agents, and seldom address the issue of private repressive violence (Earl 2003, Earl *et al.* 2003). However, by their participation in social contention, these groups play a role in the process of state formation; 'exclusionary' movements (Payne 2000), irregular armed forces (Davis and Pereira 2003), vigilantes (Huggins 1991) or 'death squads' (Campbell and Brenner 2000, Sluka 2000) participate in social and territorial control, capital accumulation and institutional change. They are key actors in the exclusion of subordinate populations from the enforcement of their rights. Private repression, and more broadly private violence, does not exist independently from public institutions. The example of land spoiling that mobilizes both violent and bureaucratic resources shows the interweaving of these logics.

### **Spoiling: between the arms and the state**

Land grabbing is a common phenomenon in the Colombian conflict. The government estimates that more than four million hectares have been seized from peasants by armed actors. In the Magdalena, the land grab has been documented starting from the late 1980s, when researchers estimated that the province was the fourth most affected by the uptake of land in the hands of drug traffickers (Reyes 1997); this phenomenon was related to the development of the banana industry. The eviction of peasants from their lands was often followed by the legalization of the ownership by the armed actor or a front man. It is estimated that over 21,000 ha have been abandoned and occupied by new owners, usually linked to paramilitary groups. These were farms with an average extension of five hectares, thus they were reasonably-sized family plots (Barbosa *et al.* 2007). The development of paramilitary activity in the Magdalena was accompanied by waves of forced displacement. In

1997 (the first year for which sources exist), there were 1,497 refugees in the province. In 2002, this figure reached 34,386 people.<sup>15</sup>

Forced displacement in Colombia follows diverse logics, most of them closely bound up to land contention (Reyes and Bejarano 1988). However, armed groups can also cause this displacement when pursuing military objectives; Cairns (1997, 17) stresses the fact that an armed actor can get rid of a part of the territory's population in order to facilitate its military control and to destroy enemy networks. Thus, forced displacement is a complex phenomenon that is not exclusively related to economic reasons. Moreover, forced displacement is caused by all armed actors of the Colombian conflict – guerrillas, paramilitary groups and the military. However, forced displacement as a land grabbing strategy is sufficiently well-documented to be considered as a proven fact (Querubín and Ibañez 2004).

### *From forced displacement to land grab*

Armed land grabbing in Colombia is not a new phenomenon; Meertens (2000) describes how, until the first third of the twentieth century, the haciendas expanded by a standardized process of settling and land grabbing. First, landless peasants colonized waste land; once it was appropriated and exploited, the land was seized by the hacienda and the settlers became sharecroppers, with the obligation to pay a portion of the produce and work at the hacienda a certain number of days per month; this was known as the *obligación* system. As stressed by Ross (2007, 59), 'rural violence in Colombia persists chiefly because it has been an effective means to advance the interests of certain political and economic groups, and induce large-scale population movement out of the countryside'. The contemporary land grab seems to be linked to different patterns of land control. A recent study states that:

The impact of these processes (of forced displacement) on different human groups and social sectors is proportional to agricultural structures prior to displacement.... In regions with a long tradition of land ownership concentration, as the Atlantic Coast, the paramilitary action reinforced the secular trend of peasant subordination and marginalization'. (Reyes Posada *et al.* 2010, 1)

However, often the population expulsion is not a sufficient condition of land exploitation. When forced displacement becomes land grab, violent capital is no longer sufficient, and social capital becomes a key element of paramilitary strategies. In most Colombian regions, public institutions are strong enough to create a demand for legal recognition from all social actors. This recognition is particularly important for criminal actors, as their operations' sustainability depend on their capacity to convert profits of crime into legal capitals, to 'launder' those assets, in the largest sense. Therefore, it does not suffice to occupy a plot; the profitability of the land grabbing requires the institutional recognition of property rights over those spurious holdings.

The operations needed to legalize the land grab and to secure property rights depend mainly on the previous land tenure regime. According to a 2005 study, 42.8% of refugee families in the Magdalena ran a farm of their own. Yet only 59.2% of them held a title of ownership; 15.6% had a right of tenure, determined by the

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<sup>15</sup>Agencia para la acción social y la cooperación internacional. SIPD.



mere occupancy of the land (Barbosa *et al.* 2007). Its abandonment makes this right obsolete and allows someone else to claim the status of tenant. Subsequently, land tenure could be legalized. Thus, in the case of tenants, the eviction of the original occupants was sufficient to seize the land.

However, more sophisticated strategies were needed to spoil properties protected by a title deed. The owners could be compelled, using threats and murder, to sign the sale. This was achieved under the market price, and often paid with a check without funds. When the owner had already left, it was also possible to falsify a deed with the help of notaries. In Colombia, these are public officials, appointed by the executive, and the participation of some of them in paramilitary land grabs is under current investigation by criminal and disciplinary authorities. The other public institution that could participate in land grabbing was INCORA; as the agency was responsible for land reform implementation, it was empowered to modify property rights. INCORA collaboration was particularly useful when the plots that were meant to be seized had been previously adjudicated as a part of the land reform policy. In those cases, there was an interdiction of land sale during the twelve years following the procurement of the plot. If the beneficiary of land adjudication abandoned his/hers plot during this period, it could be reallocated to a new owner. Consequently, INCORA was in a key institutional place. A brief analysis of a case study shows the importance of public institutions and influence over administrative acts in land grabbing.

In the early 1990s, INCORA allocated plots in the municipality of Chibolo (Magdalena) to landless peasants. These farms were originally owned by large local landowners and were purchased by the Institute to be shared among the peasants. This is the case of El Encanto hacienda, located near the village of Pueblo Nuevo, in Chibolo. Thirty-seven families settled on those lands in 1991. Yet, in 1996, paramilitary groups commanded by Jorge Cuarenta arrived in the region. In December of that year, they brought together people of Pueblo Nuevo; they warned them about the obligation to cooperate with them and provide them information about the guerrillas. Then selective assassinations began. Jesus Olivo, a peasant leader, was murdered on October 24, 1996, and Oberto Martínez, a farmer, was killed the following year. The residents said that after Oberto's death, they were told that if they refused to collaborate with paramilitaries a loved one would be murdered. On July 30, 1997, they enacted their threats of violence, murdering Roberto Barrios, the teacher, on the village square. This murder terrified many residents of Pueblo Nuevo, who then left the village to take refuge in the urban center of Chibolo. In total, 140 families fled the village and its surroundings. A few months later, a dozen people returned to Pueblo Nuevo to assess the situation, and they were immediately threatened by paramilitaries. After the assassination of two of them, the people of El Encanto definitively renounced claims to their land.

This is when INCORA intervened. Even though it had allocated the land to the peasants in 1991, the agency extinguished the titles. An administrative act of October 28, 2002, indicated that the owners had abandoned their lands and therefore they could be assigned to other operators. Several acts were then issued by INCORA, granting the land to new owners. These were paramilitary lieutenants and local allies of the AUC.

To understand the participation of INCORA, the mechanism of land grabs must be linked to the paramilitary control of local institutions. Indeed, in Colombia, the ruling administrative positions are 'owned' by a local politician with national

influence. This is not a written procedure but it is tolerated and well-known. However, the position of INCORA director was 'owned' by Dieb Maloof, a senator convicted for his electoral alliance with paramilitaries in the Magdalena. Furthermore, as stated by the paramilitary chief Carlos Tijeras, although appointments to senior positions in public institutions remained the political candidates' prerogative, they had to be approved by the paramilitary commander of the zone (*Semana* 2008).

This example shows the participation of both violent and social capital in the process of land spoiling. But the interaction between state and criminal strategies is not limited to property rights enforcement. As the example of natural resources will tend to show, violent actors can take advantage of state development policies, obtaining tolerance and even subsidies. Equally, governing elites can legislate for the sole advantage of business development, willing to ignore the criminal paths followed by some economic actors. A case study will try to illustrate this point.

### *Natural resources, violence and public policies*

Institutional mechanisms of land grabbing described above are embedded in local collusive networks linking paramilitary groups, politicians and civil servants. But the relation between state action and violent land spoiling is not limited to these local configurations. On the contrary, there is a strong interaction between public policy design, established in central loci, and its local implementation. Illegal actors can participate in it and profit from this participation. The example of oil palm exploitation conjugates violent land grabbing, business development and public policies intended to stimulate this business. Palm is one of the government's top priorities for agro-industrial development since the early 1990s. According to FEDEPALMA, the palm growers association, there are 360,000 ha of palm plantations in Colombia, a figure that is expected to double in the next ten years. Such prospects were attractive to the paramilitary, as the oil palm sector presents a combination of considerable profitability, public subsidies and possibilities for money laundering. Not only did it represent the possibility of multiplying land grabbing profits, but also of carrying it out with the financial support of the state. Oil palm shows that the relation between the state and paramilitary groups is not limited to property rights issues, but also extends to economic public policies. As Goebertus (2008) puts it, the public investment in the palm business created 'perverse incentives' to armed actors, favoring forced displacement and land grabbing. This link is difficult to prove, but it is unequivocal that criminal actors not only managed to legalize their profits, but also to finance this conversion with public funds. As argued by Frances Thomson (2011), the role of paramilitary groups in several agribusiness and mining projects, of which oil palm crops are a paradigmatic instance, contributes to a critique of the conventional version of the development-security nexus.

The case of lower Atrato valley region is one of the best documented in the matter of oil palm-related paramilitary violence.<sup>16</sup> This abundance of information is mainly due to the intervention of the Interamerican Commission for Human

<sup>16</sup>A very detailed account of the lower Atrato valley case can be found in Franco and Restrepo (2011).

Rights and the Colombian Constitutional Court, who triggered a diversity of official surveys on the matter, mainly from control institutions such as the General Comptroller (*Contraloría General*) or the General Inspector (*Procuraduría General*). For the purposes of this research, judicial sources and interviews complete these governmental sources.

From 1997, the Lower Atrato region, especially the basin of the rivers Jiguamiandó and Curvaradó (province of Chocó), is one of the clearest examples of concurrence between agribusiness, paramilitary violence and economic development policies. In 1993, collective title deeds were issued to Afro-Colombian communities of lower Atrato, recognizing the tenure of the land they have occupied for generations. Collective deeds have a particularly solid legal protection; they are unalienable and indefeasible; as Ulrich Oslander remarks (2007, 754) this was seen as a way to empower communities and to protect traditional lifestyles from global agribusiness. Moreover, this 'green multiculturalism' charged Afro-Colombian communities with the responsibilities of sustainable resource exploitation and preservation (Cardenas 2011).

However, in 1996 paramilitary groups attacked the local inhabitants, accusing them of being favorable to guerrillas. On December 20, 1996, a group of armed men, identified as members of the ACCU, arrived in the town of Riosucio, and assassinated five people, including the mayor. According to the local witnesses, the military had full control of the area during the massacre, and they provided logistical support to paramilitaries.<sup>17</sup> The same group committed a series of murders during the following months in the region of Riosucio. The paramilitary groups came from the northeast, and were looking to obtain full control of the gulf of Urabá, a strategic place for drug export and arms import.<sup>18</sup> From February 1997, military from the 17th Brigade deployed 'Operation Genesis', an armed action aiming to evict the 57th Front of FARC from the lower Atrato. According to confessions of the former chief of the AUC in the region, Fredy Rendón, twelve of his men participated in Operation Genesis (*Verdad Abierta* 2010). Rendón declared that this collaboration had been decided by AUC commander Carlos Castaño and the chief of intelligence of the 17th Brigade. The twelve paramilitary men sent to the military had a precise knowledge of the region, and acted as 'guides'. These men were placed under the commandment of Coronel Plazas Acevedo, who is currently a fugitive of justice. Operation Genesis started on February 24, lasted five days and involved intense bombing against presumed guerrilla positions. This bombing was indiscriminate, and forced the population to leave their houses and hide in the jungle. On February 23, the Front Elmer Cárdenas of the AUC, commanded by Fredy Rendón, launched the 'Operation Cacarica'. According to Rendón, during Operation Cacarica his men patrolled jointly with military troupes and had common military confrontations against the FARC (*Verdad Abierta* 2010). In the aftermath of operations Genesis and Cacarica, more than 15,000 people left the region and sought refuge in the neighboring towns of Turbo and Mutatá (*Semana* 2009). The paramilitary and military offensive on civilian populations, and the impunity of the official agents involved, must be linked to the isolation of this peripheral province, and to the

<sup>17</sup>CINEP, database Noche y Niebla.

<sup>18</sup>Panorama actual del Chocó. Observatorio del Programa Presidencial de DDHH y DIH. s.d. (Contemporary outlook of the Choco department. Observatory of the Presidential Program for Human Rights.)

marginality and poverty of its inhabitants. As Oslender (2007, 756) puts it, 'in such a context of invisibility it is easy for all armed actors, including the Colombian army, to operate under the cloak of anonymity'. From 1996 to 2007, 13 cases of massive forced displacement were reported, and 115 civilians were murdered in this zone. Moreover, as argued by Maria Teresa Uribe (1992), land contention in Urabá (a region that includes the Lower Atrato valley) is historically structured by its perception as an 'empty territory'. This seems to be a recurrent pattern in peripheral spaces targeted by corporate interests. A comparable situation is described by Vellema *et al.* (2011, 307) in their account of the violent conflict in the Mindanao province (Southern Philippines), where 'all lands without Western-style private land titles were considered to be "public lands"'.

Shortly after, oil palm firms arrived in the region. As argued by Franco and Restrepo (2011, 269), the Lower Atrato case exemplifies the overlapping of counter-insurgency and capital accumulation. According to Vicente Castaño, AUC's head of finances, this was a paramilitary strategy of economic development:

We have palm crops in Urabá. I found the businessmen myself to invest in those projects that are durable and productive. The idea is to bring the rich to invest in such projects in different parts of the country. By bringing rich people to these areas, state institutions will come. Unfortunately, the state institutions only come when you are rich. We must bring those rich businessmen all over the country; that is one of our commanders' missions.

According to an INCODER report, the production of palm oil in the regions of Jiguamiandó and Curvaradó started in 2001. The report calculates that twelve firms occupied more than 26,000 ha, and that plantations covered, by 2005, more than 5,000 ha. The mobilization of the local communities, supported by NGOs, took the case to the Interamerican Court for Human Rights. In 2003, the Court adopted a resolution requiring the Colombian state to implement immediate measures in favor of the displaced communities. The Court manifested a particular concern about agribusiness development taking place in the collective lands of Jiguamiandó and Curvaradó:

Since 2001 the firm Urapalma SA has promoted oil palm planting in approximately 1,500 ha of collective land areas belonging to these communities, enjoying armed protection by troops of the 17th Brigade and by armed civilians of its factories and seed banks. Operations and armed raids in these areas intend to intimidate local community members, either to force them to participate in palm production or to vacate their territory.<sup>19</sup>

According to the prosecutor in charge of the case, Urapalma used fictive 'community associations' to legalize the land grabbing. Officially, oil palm plantations appeared as 'strategic alliances led by local communities' (Ballvé 2009). Urapalma's board of directors was controlled by friends and relatives of Vicente Castaño. According to the prosecutor, they were the direct representatives

<sup>19</sup>Resolución de la Corte interamericana de derechos humanos. Medidas provisionales solicitadas por la Comisión Interamericana de Derechos Humanos respecto de la República de Colombia caso de las comunidades del Jiguamiandó y del Curbaradó. March 6, 2003, p. 2. (Interamerican Human Rights Court Resolution. Provisional measures requested by the Interamerican Human Rights Commission affecting the Republic of Colombia. Communities of Jiguamiando and Curbarado's case).

of Castaño and AUC's interests in the region (*El Espectador* 2010). Asoprobeba, another palm firm in the region, was controlled by Sor Teresa Gómez, a relative of the Castaños and an active member of the AUC. Asoprobeba was officially a non-profit foundation formed by more than a hundred peasant families (*Verdad Abierta* 2011). As a result of these investigations, the prosecutor ordered the arrest of 24 oil palm investors.

Before having been pursued by justice, these companies were actively supported by different public institutions, especially the Ministry of Agriculture, through its rural development programs. In 2002, the Ombudsman Bureau (*Defensoría del Pueblo*) remarked that the implementation of oil palm planting had received large government support, in spite of the well known denunciations of forced displacement, assassination and forced disappearance.<sup>20</sup> Oil palm development in the lower Atrato received millions in public subsidies during several years. Urapalma, for instance, received several credits from Finagro (public fund for agricultural development), for more than 2.5 million dollars. A 2009 Comptroller Bureau report found that Finagro had approved credits for more than 7.5 million dollars. Urapalma received 89% of all the Rural Credit Incentives distributed in the Lower Atrato. The report concludes that 'Urapalma real investment in oil palm cultivation in Curvaradó has been financed almost at a 100% with resources from the public agriculture financial system'.<sup>21</sup>

Public institutions support of oil palm business was not merely financial, but also legal. Several bills presented by the government to the parliament from 2003 to 2006 showed that measures of agricultural development and modernization could facilitate the legalization of land grabbing. The National Development Plan, a 2003 Act, mandated INCORA to 'recover abandoned land...destined to agricultural business and reallocate it to new producers'.<sup>22</sup> This provision, ignoring the abandonment causes, permitted INCORA to reallocate plots that had been left by their owners under violent pressure. Logically, beneficiaries of these reallocations were most often related to paramilitary groups that had caused the forced displacement. In 2005 and 2006, different bills were submitted to the Parliament targeting the legalization of irregular title deeds;<sup>23</sup> however there were no controls provided to avoid the use of these measures to legalize land spoiling. In August 2006, the Minister of Agriculture submitted the Rural Development Bill<sup>24</sup> (*Estatuto de Desarrollo Rural*). One of the bill's provisions would permit the registry of a title

<sup>20</sup>Defensoría del Pueblo. Derechos Humanos y Violación a Derechos Humanos en el Bajo Atrato Chocoano, 2002. (The Ombudsman Bureau. Human rights and human rights' violation in the Chocoan Lower Atrato.)

<sup>21</sup>Contraloría General de la Nación. Auditoría gubernamental con enfoque integral, modalidad regular, al fondo para el financiamiento para el sector agropecuario, FINAGRO, vigencia fiscal 2005–2006. February 2009 (Nation's General Comptroller. Governmental audit with comprehensive approach. Regular Modality. Public fund for agricultural development FINAGRO. Financial period 2005–2006).

<sup>22</sup>Ley 812 de 2003, por la cual se aprueba el Plan Nacional de Desarrollo 2003–2006, Hacia un Estado comunitario, artículo 28 (Law 812, 2003. approving the National Development Plan 2003–2006, Towards a Communitarian State, art. 28).

<sup>23</sup>Radicaciones 083 de 2003 – Cámara, 230 de 2004 - Senado, y 102 de 2006 – Senado, Proyecto de ley por medio de la cual se establece un proceso especial para el saneamiento de la titulación de la propiedad inmueble (Bill establishing a special process for the legalization of real estate's title deeds).

<sup>24</sup>Proyecto de ley 030 de 2006-Senado.

deed after five years of occupation of a plot. No measure was provided to guarantee the legality of this occupation. If the ownership over the concerned plot was contested, an expedited procedure was provided and the particular obstacles faced by forced-displaced populations were not taken into account (Comisión Colombiana de Juristas 2006). In March 2009, the Constitutional Court declared the unconstitutionality of the Rural Development Bill,<sup>25</sup> after a harsh mobilization of peasant and ethnic organizations, supported by national and international NGOs.

## Conclusion

This contribution intends to participate in the debate in this volume, showing the importance land control and property rights have for the Colombian case. For a great variety of actors – paramilitary groups and their allies, but also policymakers and peasant movements – the articulation between armed violence and property rights enforcement institutions is pivotal. The importance of a legal recognition over property claims partly shapes the logics of violence. The political agenda, where issues of agribusiness and its ‘contribution’ to economic development are central, gives form to a certain political opportunity structure favorable to land spoiling and to the conversion of these spurious capitals into legal ones. The interaction of all these mechanisms contributes to the consolidation of a highly inequitable agrarian economy.

Yet, concluding that the deepening of inequality and the strengthening of predatory forms of capital accumulation automatically lead to a weakening of the state is a theoretical nonsense. Such analysis ignore the central place taken by violence and spoiling in the formation of the state. It ignores a historical fact pointed out by Charles Tilly (1985, 170) when he developed the idea of ‘the interdependence of war making and state making and the analogy between both of those processes and what, when less successfully and in smaller scale, we call organized crime’.

## References

- Ballvé, T. 2009. Una de las cooperativas de palma entregadas por Macaco para reparar a sus víctimas recibió dinero del Plan Colombia. *La Silla Vacía*, May 31.
- Ballvé, T. 2011. Territory by dispossession: decentralization, statehood, and the narco land-grab in Colombia. International Conference on Global Land Grabbing, University of Sussex, 6 April 2011.
- Barbosa, J., W. Renán and W. Suárez. 2007. *La propiedad rural en el Magdalena 1970–2004 y algunas relaciones con el desplazamiento forzado*. Santa Marta, DTCH: Universidad del Magdalena, Vicerrectoría de Investigación, Fonciencias, Sección II, informe final convocatoria 2004.
- Barkey, K. 1994. *Bandits and bureaucrats: the Ottoman route to state centralization*. Cornell University Press.
- Bayart, J. 2004. Le crime transnational et la formation de l’État. *Politique Africaine*, 93, 93–106.
- Bello, M. 2004. El desplazamiento forzado en Colombia: acumulación de capital y exclusión. In: *Desplazamiento forzado: Dinámicas de guerra, exclusión y desarraigo*. Universidad Nacional de Colombia.
- Berman, B. and J. Lonsdale. 1992. *Unhappy valley. Conflict in Kenya and Africa. State and class*. Portsmouth: James Currey.

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<sup>25</sup>Sentencia C-175/09, March 18 2009, M.P. Luis Ernesto Vargas Silva.



- Bonet Morón, J. 2000. *Las exportaciones colombianas de banano*. Cartagena: Banco de la República.
- Borras, S. 2003. Questioning market-led agrarian reform: experiences from Brazil, Colombia and South Africa. *Journal of Agrarian Change*, 3(3), 367–94.
- Borras, S.M. and E.B. Ross. 2007. Land rights, conflict, and violence amid neo-liberal globalization. *Peace Review: A Journal of Social Justice*, 19(1), 1–4.
- Briquet, J. and G. Favarel-Garrigues, eds. 2010. *Organized crime and states: the hidden face of politics*. Palgrave Macmillan.
- Cairns, E. 1997. *A safer future, reducing the human cost of war*. Oxford: Oxfam Publications.
- Campbell, B. and A. Brenner, eds. 2000. *Death squads in global perspective: murder with deniability*. New York: St Martin Press.
- Cardenas, R. 2011. After titling: oil palm landscapes and Afro-Colombian territories. International Conference on Global Land Grabbing, University of Sussex, 6 April 2011.
- Combes, H. 2006. Gestion des manifestations dans le Mexique des années 1990. In: O. Fillieule and D. Della Porta, eds. *Police et manifestants. Maintien de l'ordre et gestion des conflits*. Paris: Presses de Sciences Po, pp. 229–56.
- Comisión Colombiana de Juristas. 2006. *Revertir el destierro forzado: protección y restitución de los territorios usurpados. Obstáculos y desafíos para garantizar el derecho al patrimonio de la población desplazada en Colombia*. Bogotá.
- Cramer, C. and P. Richards. 2011. Violence and war in agrarian perspective. *Journal of Agrarian Change*, 11(3), 277–97.
- Davis, D. and A. Pereira, eds. 2003. *Irregular armed forces and their role and politics and state formation*. Cambridge: Cambridge University Press.
- Duncan, G. 2005. *Los señores de la guerra*. Bogotá: Planeta.
- Earl, J. 2003. Tanks, tear gas, and taxes: toward a theory of movement repression. *Sociological Theory*, 21(1), 44–68.
- Earl, J., J. McCarthy and S. Soule. 2003. Protest under fire? explaining the policing of protest. *American Sociological Review*, 68(4), 581–606.
- El Espectador*. 2010. El emisario de Castaño en Urabá. *El Espectador*, October 14.
- El Tiempo*. 1991a. Estado de anarquía en la Zona Bananera. *El Tiempo*, September 25.
- El Tiempo*. 1991b. Ciénaga, entre euforia y miedo. *El Tiempo*, October 7.
- El Tiempo*. 1991c. Cien años de negocios con sabor a banano. *El Tiempo*, November 9.
- El Tiempo*. 1992. Secuestradas 120 personas en 1992. *El Tiempo*, May 5.
- El Tiempo*. 1993. Cuatro secuestros en siete días en el Magdalena. *El Tiempo*, December 7.
- Franco, V.L. and J.D. Restrepo. 2011. Empresarios palmeros, poderes de facto y despojo de tierras en el Bajo Atrato. In: M. Romero ed. *La economía de los paramilitares: redes de corrupción, negocios y política*. Bogotá: CNAI – Random House Mondadori.
- Garay Salamanca, L.J., ed. 2008. *La Captura y Reconfiguración Cooptada del Estado en Colombia*. Bogotá: Método.
- García Villegas, M. and J.E. Revelo Rebolledo. 2010. *Estado alterado. Clientelismo, mafias y debilidad institucional en Colombia*. Bogotá: Dejusticia.
- Goebertus Estrada, J. 2008. Palma de aceite y desplazamiento forzado en Zona Bananera: ‘trayectorias’ entre recursos naturales y conflicto. *Colombia internacional*, 67, 152–75.
- Huggins, M., ed. 1991. *Vigilantism and the state in Latin America*. New York: Praeger.
- Jaramillo, J.E., L. Mora and F. Cubides. 1986. *Colonización, coca y guerrilla*. Bogotá: Alianza Editorial Colombiana.
- Jones, A. 2004. Review: parainstitutional violence in Latin America. *Latin American Politics and Society*, 46(4), 127–148.
- Kay, C. and G. Salazar. 2001. Estructura agraria, conflicto y violencia en la sociedad rural de América Latina. *Revista Mexicana de Sociología*, 63(4), 159–95.
- Kay, C. 2001. Reflections on rural violence in Latin America. *Third World Quarterly*, 22(5), 741–75.
- Kruijt, D. and K. Koonings. 2004. The military and their shadowy brothers-in-arms. In: D. Kruijt and K. Koonings, eds. *Armed actors: organised violence and state failure in Latin America*. London: Zen Books, pp. 16–32.
- López, C., ed. 2010. *Y refundaron la patria. De cómo mafiosos y políticos reconfiguraron el estado colombiano*. Bogotá: Mondadori.

- Lund, C. 2006a. Twilight institutions: an introduction. *Development and Change*, 37(4), 673–84.
- Lund, C. 2006b. Twilight institutions: public authority and local politics in Africa. *Development and Change*, 37(4), 685–705.
- Lund, C. and T. Sikor. 2009. Access and property: a question of power and authority. *Development and Change*, 40(1), 1–22.
- Machado, A. and D. Meertens, eds. 2010. *La tierra en disputa. Memorias de despojo y resistencia en la Costa Caribe (1960–2010)*. Bogotá: Comisión Nacional de Reparación y Reconciliación. Area de Memoria Historica.
- Medina Gallego, C. 1990. *Autodefensas, paramilitares y narcotráfico en Colombia*. Bogotá: Documentos Peridísticos.
- Meertens, D. 2000. *Ensayos sobre tierra, violencia y género*. Bogotá: Universidad Nacional - Centro de Estudios Sociales.
- Migdal, J. 1988. *Strong societies and weak states*. Princeton: Princeton University Press.
- Oquist, P. 1980. *Violence, conflict, and politics in Colombia*. New York: Academic Press.
- Ortiz Sarmiento, C.M. 2007. *Urabá: pulsiones de vida y desafíos de muerte*. Bogotá: La Carreta Social.
- Oslender, U. 2007. Violence in development: the logic of forced displacement on Colombia's Pacific coast. *Development in Practice*, 17(6), 752–64.
- Payne, L. 2000. *Uncivil movements, the armed right wing and the democracy in Latin America*. Baltimore: The John Hopkins University Press.
- Pécaut, D. 2006. *Crónica de cuatro décadas de política colombiana*. Bogotá: Norma.
- Pécaut, D. 2008. *Les Farc, une guerrilla sans fins?* Paris: Lignes de repères.
- Querubín, P. and A.M. Ibañez. 2004. Acceso a tierras y desplazamiento forzado en Colombia. *Documentos CEDE, Universidad de los Andes*, 23.
- Revista Cien Días. 1997. Entrevista con Herman Arias. *Revista Cien Días*, May.
- Reyes, A. 1997. Compra de tierras por narcotraficantes. In: *Drogas ilícitas en Colombia. Su impacto económico, político y social*. Bogotá: Ariel Ciencia Política, pp. 279–346.
- Reyes, A. 2009. *Guerreros y campesinos. El despojo de la tierra en Colombia*. Bogotá: FESCOL/Norma.
- Reyes, A. and A.M. Bejarano. 1988. Conflictos agrarios y luchas armadas en la Colombia contemporánea: una visión geográfica. *Análisis Político*, 5, 6–27.
- Reyes Posada, A., L. Duica Amaya and W.A. Pedraza. 2010. *El despojo de tierras por paramilitares en Colombia*. Bogotá: Mimeo.
- Roldan, M. 2002. *Blood and fire: la Violencia in Antioquia, Colombia, 1946–1953*. Duke University Press.
- Romero, M. 2003. *Paramilitares y Autodefensas. 1982–2003*. Bogotá: Planeta.
- Ronderos, M.T. 2010. *¿Como se forjó la tragedia de los Montes de María?* Bogotá: Mimeo.
- Ross, E. 2007. Clearance as development strategy in rural Colombia. *Peace Review*, 19(1), 59–65.
- Sciarrone, R. 2000. Réseaux mafieux et capital social. *Politix*, 49, 35–56.
- Semana. 2008. La red 'anticorrupción' de Jorge 40. *Semana*, August 26.
- Semana. 2009. Los usurpados del Chocó. *Semana*, March 14.
- Sluka, J., ed. 2000. *Death squad, anthropology of state terror*. Pennsylvania: University of Pennsylvania Press.
- Thomson, F. 2011. The agrarian question and violence in Colombia: conflict and development. *Journal of Agrarian Change*, 11(3), 321–56.
- Tilly, C. 1985. War making and state making as an organized crime. In: P. Evans, D. Rueschemeyer and T. Skocpol, eds. *Bringing the state back in*. Cambridge: Cambridge University Press.
- Uribe, M.T. 1992. *Urabá: ¿Región o territorio? Un análisis en el contexto de la política, la historia y la etnicidad*. Medellín: IDER – Corpourabá.
- Valencia, L. 2008. Farc: dinámica reciente de la guerra. *Arcanos*, 14, 3–23.
- Vellema, S., S. Borrás, and F. Lara. 2011. The agrarian roots of contemporary violent conflict in Mindanao, Southern Philippines. *Journal of Agrarian Change*, 11(3), 298–320.
- Verdad Abierta. 2010. Doce paramilitares fueron guías del ejército en la Operación Génesis: 'el Alemán'. *Verdad Abierta*, January 15.

- Verdad Abierta*. 2011. Los pecados terrenales de Sor Teresa Álvarez. *Verdad Abierta*, January 20.
- Volkov, V. 2002. *Violent entrepreneurs. The use of force in the making of Russian capitalism*. Ithaca: Cornell University Press.
- Zamosc, L. 1986. *The agrarian question and the peasant movement in Colombia: struggles of the National Peasant Association, 1967–1981*. Cambridge University Press.
- Zamosc, L. 1992. Transformaciones agrarias y luchas campesinas en Colombia: un balance retrospectivo: 1950–1990. *Análisis Político*, 15, 7–45.

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